

Court No. - 35

Case :- WRIT - C No. - 15506 of 2018

Petitioner :- Munni Lal Patel

Respondent :- State Of U.P. And Another

Counsel for Petitioner :- Ajay Kumar Sinha

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Bharati Sapru,J.

Hon'ble Saral Srivastava,J.

Heard Shri A.K. Sinha, learned counsel for the petitioner and Shri Ravi Ananad Agrawal, learned counsel for the respondent no.2.

The petitioner has come before this Court seeking a correction in the bill issued towards his subsidy.

Shri Ravi Anand Agrawal, learned counsel appearing for the respondent-corporation points out that under Clause 4.6 (f) of the Electricity Supply Code, 2005, petitioner has a remedy in case he doubts the correctness of the bill. Clause 4.6(f) of the U.P. Electricity Supply Code, 2005 reads as hereunder:-

"Disputes regarding the estimate may be referred to the authority that is one level higher than the sanctioning authority and if the applicant is still aggrieved he may approach the Consumer Grievance Redressal Forum for adjudication."

It is open to the petitioner to take recourse to the remedy provided under the U.P. Electricity Supply Code, 2005 itself. In case the petitioner approaches the appropriate authority, his application may be heard and disposed of in accordance with law without any delay.

We are not inclined to interfere in this matter in view of a recent supreme Court decision in the case of **Authorised Officer, State Bank of Travancore Vs. Mathew K.C. (Civil Appeal No.1282 of 2018) dated 30.01.2018** wherein it has been held that where the statutory remedy is available the writ jurisdiction should not be allowed to be invoked under Article 226 of the Constitution of India, unless there is an exceptional circumstance to call for interference at this stage.

The Writ Petition is accordingly disposed of.

Order Date :- 30.4.2018/pks